

25STCV06495 25STCV06495

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-27

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Case Number: 25STCV06495 Hearing Date: July 27, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

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MIL -- TENTATIVE RULING

LIVIER BEJAR

vs.

AMERICAN HONDA MOTOR CO.

Case

No.: 25STCV06495

Hearing Date: July 27, 2026

I.

Plaintiff's Motions in Limine

1.

Settlement Discussions

No oppo in trial NB; D

does not oppose

Grant

2.

Exclude D-Honda's arbitration process
as alternate resolution

D does not oppose. P

seeks civil penalties under CC Civil Code § 1794(e) or §
1793.22 but rather § 1794(c) (requiring P to prove "willfulness."

Grant

3.

Exclude evidence of atty fees and costs

D does not oppose

Grant

4.

Exclude evidence of P's financial condition
w/o notice

D does not oppose

Grant

5.

Exclude evidence of atty advertising

D does not oppose

Grant

6.

Exclude evidence that P was required to
revoke acceptance of the vehicle within any specific time frame. Rejection must be timely.

D opposes but might be

non-issue

Likely grant

7.

P moves statements by dealership

personnel are non-hearsay against Defendant Honda

D opposes & it is unclear

what statements P is referring to so unable to rule

Court will follow:

question, objection, ruling

8.

Exclude settlement offers and any §998

Similar to P's MIL

#1. There were none

D does not oppose

Grant

9.

Exclude 3P dispute resolution process

Similar to P's MIL #1 and

#2 (Honda's arbitration)

Grant

II Defendant's

Motions in Limine

1.

Exclude P & P's wits from testifying

to "substantially impaired" use, value or safety

P opposes. P has testified to problems with her

veh. Jury will decide based upon law

2.

Exclude P's subjective expectations of vehicle

Court has already ruled

and will continue to exclude P's subjective expectations

Granted

3.

Exclude that the Repair Orders in

and of themselves substantially impair the "value" of P's veh

Grant

4.

Exclude evidence that authorized

dealership is "agent" or "representative" of Defendant Honda

Will depend on

context. Statements by dealership

personnel made in the capacity of an agent of Defendant will be admitted

Court will follow:

question, objection, ruling

5.

Exclude non-recoverable damages

P has not presented any

and none anticipated. Payments for

insurance

premiums, maintenance

costs, service contracts, financing charges, and other incidental and consequential

damages are properly recoverable

Grant

6.

Exclude inapplicable service
bulletins

Grant

7.

Exclude other customer complaints,
claims, and/or lawsuits

Likely grant under §352. Court will not allow a mini-trial on statistical
evid of non-parties

8.

Exclude testimony, evidence, argument
the transmission and/or Honda Sensing System was defectively designed

Likely grant under §352. Song-Beverly does not deal with defective
design; the Court wants evid focused on repairs made within a reasonable number
of service attempts

9.

Exclude reference to Song-Beverly as
the "Lemon Law."

Haven't both parties
already done this without objection in voir dire and opening statements?

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court